

		pay Plaintiff reasonable attorney fees in the amount of \$15,340.50 and costs in the amount of \$924.58. Plaintiff and Defendant executed a settlement agreement at some point before December 12, 2024. Neither Plaintiff nor Defendant provided the Court with a copy of the settlement agreement. According to Plaintiff, the settlement agreement provided for attorney fees and costs reasonably incurred as determined by stipulation or by motion. (Saeedian Dec., ¶ 22.) Defendant does not dispute that Plaintiff is entitled to fees, though Defendant disputes the reasonableness of the hourly rate and the hours claimed by Plaintiff's counsel. Civil Code section 1794, subdivision (d) requires the attorney fees to be based on "actual time expended" and to have been "reasonably incurred." In <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 818–819, 820, the court concluded, "the statutory language of section 1794, subdivision (d), is reasonably compatible with a lodestar adjustment method of calculating attorney fees" because "the lodestar adjustment method <i>is</i> based on actual, reasonable attorney time expended as the objective starting point of the analysis [citation], it is compatible with this statutory provision." The lodestar adjustment method requires the trial court first to determine a lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. (<i>Robertson</i>, 144 Cal.App.4th at 819, citing <i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 48–49.) For Song–Beverly Consumer Warranty Act claims, "[a] prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount."' (<i>Nightingale v. Hyundai Motor America</i> (1994) 31 Cal.App.4th 99, 104; <i>Doppes</i>, 174 Cal.App.4th at 998.) The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (See <i>Northwest Energetic Servs., LLC v. California Franchise Tax Bd.</i> (2008) 159 Cal.App.4th 841, 879–82; <i>Graciano v. Robinson Ford Sales, Inc.</i> (2006) 144 Cal.App.4th 140, 154.) The court is not required to impose a multiplier; the decision is discretionary. (<i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089; <i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1241.) The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal. 4th 1084, 1094.) This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight contingent fee basis, or are in house counsel. (<i>Id.</i>) To determine that reasonable market value, the court must determine whether the requested rates are within the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work.
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